

24STCV11151 24STCV11151

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-08-12

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Case Number: 24STCV11151 Hearing Date: August 12, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

BREANA

M RUCKER, et al.,

Plaintiffs,

vs.

FCA

US, LLC,

Defendant.

Case No.:

24STCV11151

Hearing

Date:

August 12, 2026

[TENTATIVE]

ORDER DEEMING MOTION TO DEEM ADMISSIONS
ADMITTED MOOT

I. BACKGROUND

Plaintiffs Breana M. Rucker

("Breana") and Hubert L. Rucker Jr. ("Hubert") entered into a warranty contract with Defendant FCA US, LLC ("FCA") regarding a 2020 Jeep Wrangler ("subject vehicle"). The subject vehicle has alleged defects and nonconformities making the car effectively worthless. FCA allegedly failed to replace the vehicle or reimburse Plaintiffs after a reasonable number of repair attempts. Plaintiffs sued FCA, alleging four causes of action including violations of the Song-Beverly Act.

On July 2, 2026, FCA filed the instant motion to deem the Request for Admissions, Set One, admitted against Plaintiffs. FCA also requested the court impose sanctions of \$1,660.00 against Plaintiffs. Plaintiffs filed an opposition. FCA replied.

II. LEGAL STANDARD

Code

of Civil Procedure section 2023.030,[1]

subdivision (a), provides that "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." According to section 2023.010, subdivision (d), misuse of the discovery process includes "failing to respond or to submit to an authorized method of discovery."

Under section 2033.280, if a party fails to serve a timely response to a request for admissions, the following rules apply:

"(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following

conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).

(c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion."

III. DISCUSSION

A.

Motions to Deem

Admitted

FCA

requests the Court deem Requests for Admissions, Set One, admitted against Plaintiffs.

Under section 2033.280,

subdivision (b), a party may move to deem the truth of any matters specified if the responding party fails to submit timely responses to a request for admissions. A timely response is either within 30 days after service of the demand or within the extended timeframe agreed upon by parties. (§ 2033.250, subd. (a).)

FCA

served the Request for Admissions on August 5, 2025. (Mot., Willette Decl. ¶ 2, Ex. A.) Responses were initially due September 8, 2025. (Id. at ¶ 5.) Plaintiffs

did not serve responses by this date. (Id. at ¶ 6.) On November 24, 2025, and June 22, 2026, counsel for FCA requested overdue responses (Id. at ¶¶ 7-8.) Plaintiffs did not respond to this request or serve responses prior to the filing of this motion. (Id. at ¶ 10.)

On July 17, 2026, Plaintiffs served substantially code-compliant responses to the Request for Admissions. (Opp., Washington Decl. ¶ 9, Ex. 2.) Although objections were included in the responses, these objections were waived due to the failure to respond prior to the timeline, or otherwise request an extension, and are without merit. However, as Plaintiffs served substantially code-compliant responses prior to the hearing on this motion, the Court deems the motion MOOT. (§ 2033.280, subd. (c).)

B. Sanctions

FCA is entitled to sanctions pursuant to section 2033.280, subdivision (c), as Plaintiffs' failure to serve timely responses to the Request for Admissions necessitated this motion.

FCA requests

sanctions of \$1,660.00, based upon \$1,600.00 in attorney's fees and 1 \$60.00 filing fee (Mot., Willette Decl. ¶ 7.) No information was provided as to calculation of attorney's work time. As no information was provided, the Court instead relies upon its own expertise and awards reasonable sanctions of \$310.00, based upon 1 hour of attorney's work at a reasonable rate of \$250.00 per hour and 1 filing fee.

The Court also notes this motion concerns two separate pieces of discovery—one Request for Admissions for each plaintiff. Combining discovery motions allows the moving party to avoid paying the requisite filing fees. Filing fees are jurisdictional and it is mandatory for court clerks to demand and receive them. (See *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.) Here FCA paid a single filing fee for what should have been two separate motions. FCA is ordered to pay the Court one additional \$60.00 filing fee.

IV. CONCLUSION

Defendant FCA US, LLC's motion to deem FCA's Request for

Admissions, Set One, admitted against Plaintiffs is MOOT.

FCA's request for sanctions is GRANTED. Plaintiffs and Plaintiffs' counsel are ordered to pay \$310.00 in sanctions to FCA within 30 days of the hearing on the motion.

FCA is ordered to pay the Court one additional \$60.00 filing fee.

FCA is ordered to give notice.

DATED:

August 12, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.